Topic 13 — Statutory & Non-Constitutional Bodies

Covers syllabus (click to expand)

Statutory: Lokpal (लोकपाल) | Lokayukta (लोकायुक्त) | Lokpal Rules | CVC | CIC | SIC | NHRC (राष्ट्रीय मानव अधिकार आयोग) | SHRC | NGT | NCW | NCM (असहयोग) | NCPCR | NCSK | NDMA (आपदा प्राधिकरण) | CCI | SEBI | RBI | NHB | CAT **Executive / non-constitutional:** NITI (नीति) Aayog (नीति आयोग) | NDC | CBI (केन्द्रीय अन्वेषण ब्यूरो) | NIA (राष्ट्रीय अन्वेषण एजेंसी) | IB | RAW (रॉ) | ED | NSC (राष्ट्रीय सुरक्षा परिषद)

Sources baked in: Laxmikanth (statutory + extra-constitutional bodies), Lokpal Act 2013, CVC Act 2003, RTI 2005, PHRA 1993, NGT 2010, DM Act 2005, DSPE 1946, NIA Act 2008, PMLA 2002, UPPCS PYQs 2018–2025 **Weight:** ★★★ — Lokpal **no RS Chairman** (2024); CVC **no article** (2020); NITI **extra-constitutional** + first VC **Panagariya** (2018); SDG nodal **NITI** (2019); RBI notes; CAT 323A; BHARATPOL = **CBI** (2025) **Last verified:** September 2026 · Ghatnachakra Extra Drill added for planning bodies, Lokpal, and important commissions **Current Affairs:** First Lokpal **P.C. Ghose (2019)**; Lokpal Chair **A.M. Khanwilkar (2024)**; RTI/NHRC Amd **2019**; NITI **1 Jan 2015**; NIA Amd **2019**; BHARATPOL **CBI** (2025)

Current Affairs

Year	Fact	Why asked
2019	First Lokpal (**P.C. Ghose**)	2013 Act finally operational
2024	Justice **Ajay Manikrao Khanwilkar** became Lokpal Chairperson	Current office-holder
2019	RTI Amendment — term/salary by government	Independence
2019	PHRA amendment — NHRC Chair, 3-year term	Composition
2016	RBI MPC	Monetary policy
2014	Jains notified as minority	NCM
2013	PEMSR Act (manual scavenging)	NCSK neighbour
2011	Anna Hazare / IAC	Political origin of Lokpal Act
2003	CVC Act	Vineet Narain
2015	NITI replaces Planning Commission (योजना आयोग)	Extra-constitutional (2018)
2018	Aspirational Districts	NITI; UP **8** (2021)
2019	NIA Amendment	Schedule / extra-territorial
2025	BHARATPOL	**CBI**, not IB/RAW/ED

UKPCS Prelims 2025

Q. UKPCS Prelims 2025, Q122

With reference to the Lokpal and Lokayukta Act, 2013, consider the following statements:

1. The Selection Committee of Lokpal consists of the Chairperson of Rajya Sabha (राज्यसभा).
2. It shall apply to Indian public servants both within and outside India.

A. Only 1 B. Only 2 C. 1 and 2 D. Neither 1 nor 2

Show answer

Logic: Selection committee composition carries the planted error. **Ans: B (Series B provisional key).** Statement 1 is wrong (no Rajya Sabha Chairperson on the selection committee). Statement 2 is correct — Act covers public servants in and outside India.

Q. UKPCS Prelims 2025, Q127

With reference to NITI Aayog, consider the following statements:

1. It was established on January 1, 2014.
2. It was created by a resolution of the Union Cabinet.
3. The President of India is the Chairman of NITI Aayog.

A. 1 and 3 B. Only 1 C. Only 2 D. 2 and 3

Show answer

Logic: Year of creation and chairperson identity are both planted errors. **Ans: C (Series B provisional key).** Only statement 2 is correct. Created 1 January **2015** by Cabinet resolution; Chairperson is the **Prime Minister**, not the President.

Frame

Bodies **created by Act** or by **executive resolution**. None of them (except CAT's **enabling** article **323A**) live in the Constitution.

Lokpal (Lokpal and Lokayuktas Act, 2013)

Statutory anti-corruption ombudsman for the Union — Act **2013**, in force **16 Jan 2014**. First Chair **Justice Pinaki Chandra Ghose**, **March 2019**.

- The modern ombudsman institution began in **Sweden in 1809**.
- Justice **Ajay Manikrao Khanwilkar** became Chairperson of the Lokpal on **10 March 2024**.
- The **Lokpal** (लोकपाल) consists of a **Chairperson** and a **maximum of 8 members**.
- **At least 50%** of the members must be **judicial members**.

- **At least 50%** of the members must be from **SC, ST, OBC, minorities, or women**.
- The **Chairperson** must be a sitting (बैठक) or retired **Chief Justice of India or a Supreme Court judge**, or a person of impeccable integrity with **at least 25 years** of special knowledge in fields such as anti-corruption policy, public administration, vigilance, or law.
- The **tenure** of the Chairperson and members is **5 years, or until age 70**, whichever is earlier.
- A Lokpal Chairperson or member is **not eligible** for further central or State office afterwards, subject to listed exceptions.
- The Lokpal has its **own Inquiry Wing and Prosecution Wing**, and it may also use the **CBI or another agency** under its direction.
- The Lokpal's jurisdiction covers the **Prime Minister** (subject to filters), **Union ministers**, **MPs**, **Group A to D officials**, and boards, trusts, or NGOs receiving specified foreign funds.
- An inquiry against the **Prime Minister** can be taken up only by the **full bench**, and only if **at least two-thirds (ते-भागा)** of members approve.
- An inquiry against the PM is **not permitted** if the allegation concerns **international relations, external or internal security, public order, atomic energy, or space**.
- The **Prime Minister does not sit** on the bench considering his own case.
- The Lokpal does **not** cover the **judiciary as such** — judges are dealt with through the in-house mechanism or impeachment.
- The Lokpal also does **not** cover an **MP's speech or vote** inside the House.

Selection Committee (2024 fact)

President appoints on the recommendation of:

1. **Prime Minister** — chair
2. **Speaker, Lok Sabha**
3. **Leader of Opposition, Lok Sabha** (or leader of the largest opposition party)
4. **CJI or an SC judge** nominated by the CJI
5. An **eminent jurist** nominated by the President on the recommendation of the above four

Chairman of the Rajya Sabha is not on the panel.PYQ — UPPCS Prelims 2024, Q130

According to the Lokpal and Lokayuktas Act, 2013, the Lokpal would be appointed by the President after obtaining the recommendations of a Selection Committee, with the Prime Minister as chairperson and consisting, among others, of the following:

1. Chief Justice of India or a Supreme Court Judge nominated by him
2. Chairman of the Rajya Sabha
3. Speaker of the Lok Sabha
4. Leader of Opposition in the Lok Sabha

A. 1, 2 and 3 B. 2, 3 and 4 C. 1, 2, 3 and 4 D. 1, 3 and 4

Show answer

Ans: D — 1, 3 and 4. RS Chairman is **out**.

A **Search Committee** — a separate panel of eminent persons set up under the Act, not the 2024 PYQ panel above — **shortlists names** for the Selection Committee to consider. The **Selection Committee** then makes its recommendation, and the **President** appoints. Do **not** merge the **Search Committee** with the **Selection Committee** — they are two different bodies.

The **Chairperson or a member of the Lokpal is removed** in the same way as a **Supreme Court judge** — on a charge of misbehaviour, after an inquiry by the Supreme Court.

The **Anna Hazare / India Against Corruption movement (2011)** is the street-politics origin of the Lokpal idea, but the **2013 Act** is the statute. The **Jan Lokpal Bill** that activists demanded is **not the same** as the Act finally passed — the Act is weaker on the Prime Minister and the judiciary.

Lokpal Rules (own syllabus bullet)

"Lokpal Rules" in the syllabus means **how you complain and the clocks that follow** — it is **not** a second statute. The Selection Committee remains governed by the **2013 Act** (2024).

- A complaint to the Lokpal must be made **in the prescribed form**, with the particulars and affidavit that the Rules require — not an informal message.
- A complaint is generally barred if it relates to an offence committed **more than 7 years earlier**.
- The Lokpal aims to complete a **preliminary inquiry within 60 days**, and an **investigation within 6 months** — extendable as the Act allows.
- A **false or mala fide complaint** is punishable under the Rules and the Act.
- A complainant must give his **identity and particulars** — **anonymous complaints are not** the default route.
- The **competent authority** to act against a member is the **Chairperson**; against the Chairperson, it is the **President** — as the Act allots.

> **Logic:** "Lokpal Rules" in the syllabus = **how you complain and the clocks**, not a second statute. Selection Committee remains the **2013 Act** (2024).

Lokayukta

State-level statutory ombudsman — each State has its own Act; there is **no** single all-India Lokayukta.

- Each State's **Lokayukta** is set up under that **State's own Act** — there is no central Lokayukta statute for the States.
- The **2013 Union Lokpal Act** asked States to put a Lokayukta in place; many States already had one before that.
- **Maharashtra**, in **1971**, was the **first State** to set up a Lokayukta.
- **Odisha** (ओडिशा) passed a Lokayukta law first in **1970**, but its institution became operational only in **1983**. Maharashtra enacted its law in **1971** and established the first functioning Lokayukta in **1972**.
- **Uttar Pradesh** (उत्तर प्रदेश) enacted the **U.P. Lokayukta and Up-Lokayukta Act, 1975** — one of the earliest State laws.

- From **26 February 2024**, the U.P. Lokayukta holds office for **five years or until age 70**, whichever is earlier.
- The **Up-Lokayukta** is the number-two official under the UP Act.
- Typically — and in UP — the Lokayukta is appointed by the **Governor**, after consulting the **Chief Justice of the High Court** and the **Leader of Opposition**; the exact wording follows each State's own Act.
- The Lokayukta is usually a **retired High Court or Supreme Court judge**.
- A Lokayukta covers **State ministers, MLAs, officials, and local bodies**, exactly as that **State's Act** lists them.
- Whether the **Chief Minister** is covered is **State-specific** — do **not** copy the Lokpal's PM-filter logic onto every State's Lokayukta.
- A Lokayukta may **inquire and recommend (सिफारिश) prosecution or removal**, but it is **not** a criminal court.
- The **design of a Lokayukta differs from State to State**, and also differs from the Union Lokpal.

CVC (Central Vigilance Commission)

Statutory Union vigilance watchdog — no constitutional article; supervises CBI on PCA work; **not** a police force.

- The **Santhanam Committee (1962)** on prevention of corruption led to an **executive CVC in 1964**, under the Lal Bahadur Shastri government.
- The CVC became **statutory** only with the **CVC Act, 2003**, passed after the *Vineet Narain* (Jain hawala) case, in which the **Supreme Court ordered** a statutory watchdog.
- **No Article** of the Constitution describes the CVC — a 2020 question asking "which Article" correctly answers **"none of the above."**
- The CVC's **composition** is a **Central Vigilance Commissioner** plus **2 Vigilance Commissioners**.
- The CVC is appointed by the **President**, on the recommendation of the **Prime Minister, the Union Home Minister, and the Leader of Opposition in the Lok Sabha**.
- The **tenure** of a CVC member is **4 years, or until age 65**, whichever is earlier, and there is **no further employment** under the Centre afterwards.
- The CVC exercises **superintendence over the CBI** for cases under the **Prevention of Corruption Act, 1988**.
- The CVC also **advises ministries**, runs the **CVO (Chief Vigilance Officer) network** in departments, and advises on **Integrity Pacts** and vigilance clearances.
- The CVC's jurisdiction covers **Union employees**, especially **Group A** officers, and bodies the Centre notifies — it does **not** cover **State servants**, and it does **not** turn the PM into a police case.
- The CVC is **not a police force** — it **does not register FIRs** and **does not try offences**.
- The CVC is also the designated agency for **whistle-blower complaints** under the **public-interest disclosure resolution (PIDPI)** — this is a **separate route from RTI**.
- **Nittoor Srinivasa Rau** was the **first CVC**, in 1964.
- The CVC **reports to the President**, who lays the report before **Parliament**.

The **CBI Director** is **not** appointed by the CVC. That appointment panel — under the DSPE Act, after the Vineet Narain and Lokpal-era reforms — is the **Prime Minister, the Leader of Opposition in the Lok Sabha, and the CJI**. The CVC only **supervises** the CBI on PCA work; it does **not** appoint the Director.

> **Logic:** CVC ≠ CBI ≠ Lokpal. Lokpal can *direct* CBI; CVC *supervises* CBI on PCA; CBI *investigates*.

PYQ — UPPCS Prelims 2020, Q104

Which Article of the Indian Constitution describes the Central Vigilance Commission?

A. Article 268 B. Article 280 C. Article 276 D. None of the above

Show answer

Ans: D. CVC is **statutory** (2003). 280 = FC.

CIC & SIC (RTI Act, 2005)

Act **15 June 2005**; in force **12 Oct 2005**. Movement fact: **MKSS** (Rajasthan) → RTI (2019).

	CIC	SIC
Appoint	**President**. Committee: **PM + LoP LS + a Union Cabinet Minister**	**Governor**. Committee: **CM + LoP + a Cabinet Minister**
Strength	Chief IC + **up to 10** ICs	Analogous (State Act/rules)
Tenure (original)	5 years or 65	Same idea
RTI Amd 2019	Term, salary, conditions **as the Centre / State government prescribes** — independence cut vs the old "aligned to CEC" formula	Same logic at State
After office	Not eligible for further term as IC (original); 2019 leaves more to rules	

The **UP Information Commission** is appointed by the **Governor**, on the recommendation of the **CM, the LoP, and a Cabinet Minister**. It sits under the **same RTI Act** — UP has **no separate** right-to-information statute of its own.

- Under **s.2(h)**, a **"public authority"** includes government bodies, bodies **owned, controlled, or substantially financed** by government, and **NGOs substantially financed** by government.
- The CIC held, in **2013**, that **political parties** are public authorities under the RTI Act, but this ruling has **not been enforced** — do **not** treat that fight as settled law.
- **Wajahat Habibullah** was the **first Chief Information Commissioner**.
- A request first goes to the **Public Information Officer (PIO)**, then, if refused, to a **first appeal** (departmental), and then to a **second appeal** before the **CIC or SIC**.

- The PIO must reply within **30 days**, or within **48 hours** if the request concerns **life or liberty**.
- The **penalty** on a PIO for delay or refusal can go up to **₹25,000**.
- Under **s.4**, public authorities have a duty of **suo motu disclosure** of information.
- The commonly tested **s.8 exemptions** include **security and sovereignty**, **contempt of court**, **information that would impede an ongoing investigation**, **Cabinet papers**, **commercial confidence and intellectual property**, **fiduciary information**, and **personal privacy**.
- A **public-interest override** can still require disclosure even within an exempted category.
- The **Official Secrets Act** does **not automatically defeat** an RTI request if disclosure is otherwise due.

> **Logic:** CIC is **not** a constitutional body and **not** NHRC. 2019 amendment is the current-affairs knife.

PYQ — UPPCS Prelims 2019, Q100

Mazdoor Kisan Shakti (शक्ति) Sangathan (MKSS) has been associated with which of the following in India?

A. RTE Act B. RTI Act C. MGNREGA D. National Health Mission

Show answer

Ans: B — RTI.

NHRC & SHRC (Protection of Human Rights Act, 1993)

Statutory human-rights commissions — **not** Art. 338; recommendatory; built on the Paris Principles. First Chair **Justice Ranganath Misra**. Founded **12 October 1993**. The **UN Human Rights Day is 10 December — not 29 January** (a 2025 trap); do not confuse the National Human Rights Commission with World Human Rights Day.

- Before the **2019 amendment**, only a **retired CJI** could chair the NHRC; after 2019, a retired **CJI or a retired Supreme Court judge** can chair it.
- The NHRC's members include a **serving or retired Supreme Court judge**, a **serving or retired High Court Chief Justice**, and **three other members** with knowledge of human rights — **at least one** of whom must be a **woman**.
- The **term** was originally **5 years or age 70**; the **2019 amendment** shortened it to **3 years or age 70**, whichever is earlier, and it allows **reappointment**.
- The NHRC's **Secretary-General** is typically a **police or civil servant** — this has drawn the criticism that "the police end up investigating themselves."
- The NHRC **inquires into human-rights violations** by **public servants**, **visits jails**, **reviews laws**, handles **treaty reporting**, and may **intervene in court proceedings** with the court's leave.
- The NHRC has the **powers of a civil court** while conducting an inquiry, but it **cannot punish** anyone — it can only **recommend prosecution or compensation**.
- The NHRC's report goes to the **Central government**, which lays it before **Parliament**.

- The **Chairs of NCSC (राष्ट्रीय अनुसूचित जाति आयोग), NCST (राष्ट्रीय अनुसूचित जनजाति आयोग), NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग), NCW, and NCPCR**, along with the **Chief Commissioner for Persons with Disabilities**, sit as **ex-officio members** of the **full Commission** — but the **core Commission** is only the Chairperson and the members listed above.
- The NHRC does **not** ordinarily inquire into a complaint **more than one year old**, unless the delay is condoned.
- The NHRC **cannot punish**, **cannot bind the government**, and **does not replace** a criminal court.
- The NHRC's inquiry into complaints against the **armed forces** is **restricted** — it works through reports routed via the Centre rather than a full public sitting; the 2019 amendment did **not** turn the NHRC into a court martial.

SHRC (State Human Rights Commission): The Chair was originally only a **retired High Court Chief Justice**; after the **2019 amendment**, a **retired High Court judge** can also chair it. The **State government appoints** the SHRC. An SHRC **cannot take up a matter already before the NHRC**, and it typically cannot take up a complaint against a **Central armed force**, the way the NHRC can. The same **one-year limitation** and **recommendatory** logic apply as for the NHRC. The **U.P. State Human Rights Commission** sits on this **same 1993 Act** — it is **not** an Article 338 body.

NGT (National Green Tribunal Act, 2010)

Statutory environmental tribunal — Act **2010**, Principal Bench **New Delhi**; **not** Art. 323A (that is CAT).

- The NGT was created by an **Act of 2010**, and the Tribunal itself was constituted on **18 October 2010**.
- The NGT's Chair is a sitting or retired **Supreme Court judge** or a **High Court Chief Justice**.
- The **Principal Bench** sits at **New Delhi**, with other benches at **Pune (पुणे), Bhopal, Chennai, and Kolkata**.
- The NGT's Schedule of Acts includes the **Water Act (1974)**, the **Air Act (1981)**, the **Environment (Protection) Act (1986)**, the **Forest (Conservation) Act (1980)**, the **Biological Diversity Act (2002)**, and the **Public Liability Insurance Act (1991)**, among others.
- The **Wildlife (Protection) Act, 1972** and the **Indian Forest Act, 1927** are **not** in the NGT's Schedule — classic traps.
- The NGT endeavours to **dispose of a case within 6 months**.
- An appeal from the NGT lies to the **Supreme Court**.
- The NGT's strength includes the Chair, **judicial members**, and **expert members** such as scientists and engineers — it is **not** a purely lawyers' court.
- The NGT follows three guiding principles: **sustainable development**, the **polluter pays** principle, and the **precautionary principle**.
- The NGT follows the **principles of natural justice** and is **not strictly bound** by the Civil Procedure (प्रक्रिया) Code or the Evidence Act.
- Once the NGT has taken up a **scheduled environmental dispute**, a **civil court shall not** hear that dispute.
- The NGT is **not** the same as the **CAT** — the CAT handles service matters under **Art. 323A**, while the NGT rests on the **2010 Act**.

In *L. Chandra Kumar* (1997), the Supreme Court held that tribunals like the **NGT and CAT supplement**, rather than substitute, the High Courts — Arts. **226 and 227 survive**. The NGT's core fact is: the body itself, the Schedule of Acts it covers, and its three guiding principles (sustainable development, polluter pays, precautionary).

NCW (1990 Act)

The **National Commission for Women** is a **statutory, recommendatory** body — **not** an Art. 338 body. Its Chairperson and members are appointed by the **Central government**. **Jayanti Patnaik** was its **first Chairperson**. The NCW examines **safeguards for women**, looks into **complaints of deprivation of rights**, reviews **laws affecting women**, and conducts **research**. It **cannot punish**, but it can **summon (आहूत करना) parties like a civil court** during an inquiry. **State Commissions for Women** exist separately, under their own **State Acts**.

NCM (1992 Act)

The **National Commission for Minorities** is a **statutory** body that covers the notified **religious minorities**: **Muslims, Christians, Sikhs, Buddhists, and Parsis**, with **Jains added in 2014**. The NCM is **not** the same as the **Art. 350B** Special Officer for Linguistic Minorities, who is a **constitutional** functionary. The NCM is **recommendatory**, and its members are appointed by the **Central government**. Do **not** write "six communities since 1992" — the **Jains were added only in 2014**, as the sixth community.

NCPCR (2005 Act)

The **National Commission for Protection of Child Rights** treats a **"child"** as a person **below 18 years**. It has a **Chairperson and 6 members**. The NCPCR monitors implementation of the **UNCRC**, the **RTE Act**, the **Juvenile Justice Act**, the **POCSO (पॉक्सो) Act**, and laws against **child labour**. The **SCPCR** is its State-level counterpart, created under the **same 2005 Act**. The NCPCR is **recommendatory** and conducts inquiries, but it is **not** a children's criminal court — that role belongs to the **Juvenile Justice Board** or a **POCSO court**.

NCSK (1993 Act / 1994 body)

The **National Commission for Safai Karamcharis** deals with sanitation workers and **manual scavenging**; the operative statute today is also the **Prohibition (प्रतिषेध) of Employment as Manual Scavengers and their Rehabilitation Act, 2013 (PEMSR)**. The original NCSK's statutory tenure has **lapsed**, and the body is now **kept alive only by government resolution** — it remains **not** an Art. 338 constitutional commission, and it is **recommendatory** in character.

NDMA (Disaster Management Act, 2005)

Statutory disaster authority — set up after the **2004 tsunami (सुनामी)**; organised in a three-tier structure of **NDMA – SDMA – DDMA**. It is **not** a constitutional body. The **MHA** is the nodal ministry, but the **ex-officio Chair of the NDMA is still the Prime Minister**.

- The **NDMA (National Disaster Management Authority)** is chaired, *ex officio*, by the **Prime Minister**.
- The **SDMA (State Disaster Management Authority)** is chaired by the **Chief Minister** of the State.
- The **DDMA (District Disaster Management Authority)** is chaired by the **District Magistrate** (Collector).
- The **NEC (National Executive Committee)** is chaired by the **Cabinet Secretary**.

The 2005 Act also created the **NDRF** (a disaster-response force) and the **NIDM** (a training and research institute). The **Vice-Chairperson of the NDMA** is nominated by the Prime Minister, and its **members (up to 9)** are likewise nominated. The **nodal Union ministry** for the NDMA Division is the **MHA**, but that does **not** change the fact that the **ex-officio Chair of the NDMA is the Prime Minister**, not the Home Minister — a 2021 trap.

Disaster management plans are prepared at the **National, State, and District** levels, following the cycle of **mitigation, preparedness, response, and recovery**. The **NDMA** is the authority; the **2005 Act** is the statute; and the whole structure is **not constitutional**.

PYQ — UPPCS Prelims 2021, Q26

The National Disaster Management Division in India is the nodal division in the Ministry of Home Affairs for disaster management. Who is the Ex-officio Chairman of the National Disaster Management Authority?

A. The Prime Minister B. The Home Minister C. The Defence Minister D. The Health and Family Welfare Minister

Show answer

Ans: A — Prime Minister. MHA is nodal; Chair is still **PM**.

CCI (Competition Act, 2002)

Statutory competition regulator — operational **2009**; replaced **MRTP Commission** (MRTP Act 1969).

- The CCI acts against **anti-competitive agreements** under **s.3**, **abuse of dominance** under **s.4**, and reviews **combinations** — mergers and acquisitions above notified thresholds — under **s.5–6**.
- The **Director General (DG)** conducts the inquiry, and the **CCI** passes orders and imposes penalties, often calculated as a **percentage of turnover**.
- The CCI's **composition** is a **Chairperson plus up to 6 members**, appointed by the **Central government**.
- Appeals from the CCI went earlier to the **COMPAT**; since **2017**, they go to the **NCLAT**, and finally to the **Supreme Court**.
- The CCI functions under the **Ministry of Corporate Affairs**.

- The CCI is **not** the same as **SEBI** (which regulates securities) or **TRAI** (which regulates telecom).

SEBI (SEBI Act, 1992)

Statutory capital-market regulator — executive **1988** → **statutory 1992** (post-Harshad Mehta); HQ **Mumbai**.

- SEBI's job is to **protect investors**, **regulate the securities market**, and **register market intermediaries**.
- SEBI has both **quasi-legislative and quasi-judicial** powers.
- An appeal from a SEBI order goes to the **Securities Appellate Tribunal (SAT)**, and then to the **Supreme Court**.
- SEBI's **Chairperson** is appointed by the **Central government**.
- SEBI is **not** the same as **IRDAI** (insurance), **PFRDA** (pensions), or the **RBI** (banks) — and the **SAT** hears **SEBI** appeals, **not CCI** appeals.

RBI (RBI Act, 1934) — constitutional relevance

Statutory central bank, not a constitutional body. Union List (संघ सूची) **Entry 38** reads **"Reserve Bank of India"**. Arts. **110 / 292** deal with money and borrowing, and currency is a **Union** subject.

- The **Hilton Young Commission (1926)** recommended setting up a central bank, leading to the **RBI Act, 1934**.
- The RBI began operating on **1 April 1935**, starting in **Calcutta** before moving to **Mumbai**; it was **nationalised on 1 January 1949**.
- **Osborne Smith (स्मिथ)** was the **first Governor** of the RBI; **C.D. Deshmukh (देशमुख)** was the **first Indian Governor**.
- The RBI is run by a **Central Board of Directors**, headed by the **Governor**, with typically **4 Deputy Governors**.
- The RBI's functions include **issuing banknotes**, acting as **banker to the government**, acting as **banker to other banks**, **managing foreign exchange**, **supervising banks** under the **Banking Regulation Act, 1949**, and conducting **monetary policy**.
- The **₹1 note** and **all coins** are issued by the **Government of India** — the **Finance Secretary**, not the RBI Governor, signs the ₹1 note.
- The RBI does **not** collect **income tax**, does **not** conduct the **census**, does **not** frame **foreign policy**, does **not** recommend **MSP** (that is the **CACP's** job), and does **not** publish the **WPI** (that is the **Ministry of Commerce and Industry**'s job — a 2021 trap).
- The **Monetary Policy Committee (2016)** has **6 members — 3 from the RBI**, including the Governor, and **3 external members**.
- MPC decisions are taken by **majority**, with the **Governor holding a casting vote**, and the MPC targets **CPI (सीपीआई) inflation**.

PYQ — UPPCS Prelims 2024, Q41

Which of the following functions is performed by the Reserve Bank of India?

A. Collection of income tax B. Issue of currency notes C. Conducting population (जनसंख्या) census D. Foreign policy formulation

Show answer

Ans: B. Census = Union List / Registrar General. Tax = CBDT. Foreign policy = MEA.

PYQ — UPPCS Prelims 2024, Q43

Who recommends the MSP for agricultural crops?

A. RBI B. NITI Aayog C. Commission for Agricultural Costs and Prices D. Ministry of Finance

Show answer

Ans: C — CACP. NITI is a trap, not the recommending body.

NHB (National Housing Bank Act, 1987)

Statutory housing-finance body — born **1987**, promoted by **RBI**.

- The **NHB** was set up as a **housing-finance institution** and refinancing body, and it earlier also **regulated Housing Finance Companies (HFCs)**.
- In **2019**, the **RBI took over regulation of HFCs**, and the **Government of India took over RBI's shareholding** in the NHB — the NHB remains a **statutory** housing-finance body.

CAT (Administrative Tribunals Act, 1985)

Statutory service tribunal enabled by Art. 323A — 1985 Act, Principal Bench **New Delhi**; **226/227 survive**.

- The CAT is **enabled** by **Art. 323A** (inserted by the **42nd (42वां) Amendment**), and the body itself was created by the **Administrative Tribunals Act, 1985**, effective **1 November 1985**.
- The CAT's **Principal Bench** sits at **New Delhi**, with **other benches and circuit sittings** elsewhere.
- The CAT's Chair holds the rank of a **High Court Chief Justice**.
- The CAT covers **Union civil servants**, members of the **All-India Services** as provided, and **civilian defence employees**, as the Act specifies.
- The CAT **excludes the armed forces** — their service matters go to the **Armed Forces Tribunal, 2007**.
- The CAT's "sister" tribunals are the **SAT** (State Administrative Tribunal, set up on a State's request) and the **JAT** (Joint Administrative Tribunal, for two or more States).
- In *Sampath Kumar* (सम्पथ) (1987), the Supreme Court treated the CAT as a **substitute** for the High Court; in *L. Chandra Kumar* (1997), it held that the CAT only **supplements** the High Court, and **Arts. 226/227 survive**.

- **"Administrative Tribunal — Article 323A"** is a **correctly matched pair** (alongside Inter-State Council–263, Finance Commission–280, and UPSC (संघ लोक सेवा आयोग)–315) — a recurring 2020-style Match-List item. Do **not** treat 323A as wrongly matched. **Art. 323B**, by contrast, covers **other tribunals** (tax, land, etc.), which either Parliament **or** a State legislature may set up.

To sum up: the **CAT is a 1985 statutory body**, **enabled by Art. 323A**. **Armed forces go to the AFT, 2007**, not the CAT. *Sampath Kumar* treated the CAT as an HC substitute, while *L. Chandra Kumar* (1997) held it merely **supplements** the High Court — **Arts. 226/227 survive**.

Three-box map (this topic's job)

Kind	Created by	Facts
Constitutional	Constitution	ECI, UPSC, FC, CAG (भारत के नियंत्रक-महालेखापरीक्षक), NCSC/ST/BC, GST (वस्तु एवं सेवा कर) Council (जीएसटी परिषद), AG…
Statutory	**Act of Parliament / State**	Lokpal, CVC, CIC, NHRC, NGT, CAT, RBI… (above)
Executive / extra-constitutional	**Resolution / order**	**NITI, NDC, CBI, IB, RAW, ED, NSC**. **NIA** is the odd one: **statutory** terror agency parked here because the syllabus lists it with the police/intel set

> **Logic:** "Extra-constitutional agency" (2018) = **NITI** (नीति), not UPSC/FC/ECI. CBI is **not** a 2003-style statutory commission even though DSPE 1946 gives it teeth.

Planning Commission → NITI Aayog

Extra-constitutional planning body (1950) replaced by an extra-constitutional think-tank (2015) — neither is the Finance Commission.

- The **Planning Commission** was born on **15 March 1950**, as an **extra-constitutional** body, with **Nehru** (नेहरू) as its Chair.
- The **12th and last Five-Year Plan** ended in **2017**.
- The Commission's **working head** was the **Deputy Chairman** — again, **not** a constitutional office.
- **Ashok Chanda** called the Planning Commission the **"Economic Cabinet of India"** — a fact tested in **2018**.
- The **official poverty line** used to be estimated by the **Planning Commission**; after 2015, the trap answer offered is **NITI Aayog**, but neither is the **CACP** or the **RBI**.
- The Planning Commission was **wound up in 2014–15** and replaced by the **NITI Aayog**.

NITI Aayog (1 January 2015)

The **NITI Aayog** was set up by a **Cabinet Resolution** — **not** by an Act, and **not** in the Constitution. Its full form is **National Institution for Transforming India**.

- The NITI Aayog's **Chairperson** is the **Prime Minister**.
- Its **Vice-Chairperson** is nominated by the PM; **Arvind Panagariya** was the **first Vice-Chairperson (2018)**, followed by **Rajiv Kumar** and later **Suman Bery**.
- Its **CEO** is appointed by the PM, at **Secretary** rank; **Sindhushree Khullar** was the **first CEO**.
- It has **full-time and part-time members** — specialists, with part-time members drawn from universities and research bodies, within a capped number.
- It also has **ex-officio members** — Union ministers nominated by the PM, again within a cap.
- Its **Governing Council** — the federal table — comprises the **Chief Ministers of all States** and the **Lieutenant Governors of UTs**, along with the PM.
- State **Governors are not members** of the Governing Council.
- Its **Regional Councils** are ad hoc bodies for groupings of States, with a specified tenure, chaired by the PM or his nominee.
- It also invites **special invitees**, who are domain experts.

The NITI Aayog functions as a **think-tank** — promoting cooperative and competitive federalism, bottom-up planning, a national agenda, performance indices, and hand-holding of States. Its early documents were the **15-year Vision, 7-year Strategy, and 3-year Action Agenda**. The **DMEO (Development Monitoring and Evaluation Office)** became an attached office **under NITI** in **2020**, as did the **Atal Innovation Mission (AIM)** and its **Atal Tinkering Labs**.

The NITI Aayog is **not** the **Finance Commission** (वित्त आयोग) — the FC rests on **Art. 280** and its report goes to the **President** (2023 fact). The NITI Aayog does **not allocate Plan funds** — that was the Planning Commission's job; today, expenditure runs through the **Budget and the Finance Ministry**. It does **not recommend MSP** — that is the **CACP's** job. And being chaired by the PM does **not** make it a **constitutional** body.

The **NITI Aayog is India's SDG nodal institution**, a fact tested in **2019**. **MoSPI** maintains the indicator framework, while **NITI** publishes the **SDG India Index**.

Under the **Aspirational Districts Programme (2018)**, **NITI Aayog** is the anchoring institution. **Uttar Pradesh's count stood at 8 districts up to June 2021**. The original eight were **Bahraich, Balrampur, Chandauli, Chitrakoot (चित्रकूट), Fatehpur, Shrawasti, Siddharthnagar, and Sonbhadra (सोनभद्र)**.

Index PYQs (identity = NITI; ranks are year-locked):

- **India Innovation Index 2019:** Top State **Karnataka**.
- **SDG India Index 2019–20** (Dec 2019): UP grouped **Aspirant**.
- **State Energy and Climate Index** (10 Apr **2022**): Top three **Gujarat, Kerala, Punjab**.

PYQ — UPPCS Prelims 2018, Q67

Who was the first Vice-Chairman of the NITI Aayog?

A. Arvind Panagariya B. Raghuram Rajan (राजन) C. Chandrashekhara Subramanyam D. Rajiv Kumar

Show answer

Ans: A — Arvind Panagariya. Rajiv Kumar was later.

PYQ — UPPCS Prelims 2018, Q69

Which of the following is an extra-constitutional agency?

A. Union Public Service Commission (संघ लोक सेवा आयोग) B. Finance Commission C. Election Commission (निर्वाचन आयोग) D. NITI Aayog

Show answer

Ans: D. A–C are **constitutional**.

PYQ — UPPCS Prelims 2019, Q140

Which of the following is a Nodal Institution for implementation of Sustainable Development Goals in India?

A. Planning Commission B. Disinvestment Commission C. NITI Aayog D. Finance Commission

Show answer

Ans: C — NITI. PC was already wound up.

NDC (National Development Council)

Executive federal planning forum — 6 August 1952 (Nehru); **not** constitutional; PM chairs.

- The NDC's membership included the **Prime Minister**, **Union ministers**, all **Chief Ministers**, and members of the **Planning Commission**.
- The NDC's job was to **approve the Five-Year Plans**, and to consider **national resources** and **plan implementation**.
- After **2015**, the NDC was effectively **replaced** by the NITI Aayog's **Governing Council** — do **not** write that "the NDC is a constitutional federal body."

CBI (Central Bureau of Investigation)

Union investigating agency — created by **MHA resolution, 1 April 1963**; power from **DSPE Act 1946**; **not** a 2003-style statutory commission like CVC.

- The CBI's lineage runs from the **Special Police Establishment (1941)**, set up to fight war-time corruption, through the **DSPE Act, 1946**, to the **CBI itself in 1963** — on the **Santhanam Committee's** recommendation, in the **Shastri** era.
- As a body, the CBI is **non-constitutional and non-statutory** — its power to investigate rests on the **DSPE Act, 1946**, and it is **not** created by an Act like the **CVC Act, 2003**.

- The CBI is administered by the **DoPT (Ministry of Personnel)** — **not** the MHA, which administers the **IB**.
- The CBI's headquarters is in **New Delhi**, and its training academy, the **CBI Academy**, is at **Ghaziabad** — a UP fact.
- The CBI's superintendence for **PCA cases** lies with the **CVC**; for other work, it lies with the **Central government**.
- The CBI **Director** is appointed on the recommendation of a panel of the **PM, the LoP in the Lok Sabha, and the CJI**, with minimum-tenure protections that trace to *Vineet Narain* and later statutes.
- Under **s.6 of the DSPE Act**, the CBI needs the **State's consent** to investigate within that State, unless the **Supreme Court or a High Court** orders otherwise, or the Centre uses a notified route for which consent was already given.
- The CBI is India's **National Central Bureau** for **Interpol**, and the **BHARATPOL portal (2025)** was developed by the **CBI**, not the IB, RAW, or ED.
- The CBI's motto is **"Industry, Impartiality, Integrity."**
- The CBI is **not** the same as the **NIA** (a statutory terror agency), the **ED** (a money agency), or the **IB** (an intelligence body with no police casebook).

PYQ — UPPCS Prelims 2025, Q126

'BHARATPOL', an online portal for International Police Co-operation has been developed by which of the following?

1. Central Bureau of Investigation
2. Research and Analysis Wing
3. Intelligence Bureau
4. Enforcement Directorate

A. 2 and 3 B. 3 and 4 C. Only 3 D. Only 1

Show answer

Ans: D — Only 1 (CBI). Interpol NCB is CBI.

NIA (National Investigation Agency)

Statutory terror-investigation agency — **NIA Act 2008**, post **26/11**; **no** State consent for scheduled offences.

- The NIA **investigates and prosecutes scheduled offences** — such as those under the **UAPA** (यूएपीए), laws on explosives, atomic energy, hijacking, weapons of mass destruction, and the SAARC convention on terrorism.
- The NIA needs **no State consent** to take up a scheduled offence anywhere in India — the key contrast with the **CBI**.
- The NIA's cases are tried in **Special NIA Courts**, with appeal as the Act provides.

- The **2019 amendment** widened the NIA's schedule of offences — adding, for instance, **human trafficking** and **cyber-terrorism** — and allowed **extra-territorial investigation** and action against property, with foreign cooperation.
- The NIA is headed by a **Director General**, under the **Central government**, with headquarters at **New Delhi**.

IB (Intelligence Bureau)

Oldest Indian intel organisation — 1887 (Central Special Branch); **internal**; **MHA**; executive, not statutory.

- The IB's beat is **internal intelligence**, counter-intelligence, and **VIP-security inputs**.
- The IB works under the **MHA**, and its head, the **Director, IB (DIB)**, is typically a senior IPS officer.
- The IB is an **executive** body — **not statutory**, and **not** a police investigating agency like the CBI.
- The **Multi-Agency Centre (MAC (बहु-एजेंसी केंद्र))**, which coordinates counter-terror intelligence, sits with the **IB**.
- The IB is **not** the same as **RAW**, which handles **external** intelligence.

RAW (Research and Analysis Wing)

External intelligence agency — 21 September 1968; founder **R.N. Kao**; reports to **Cabinet Secretariat**, not MHA.

- RAW's beat is **external intelligence**.
- RAW reports to the **Cabinet Secretariat**, the **NSA**, and the **PM — not** to the MHA.
- RAW is an **executive** body, **not statutory**, and it is **not** India's Interpol NCB — that role belongs to the CBI.
- RAW was carved out because the **IB** had been handling both internal and external intelligence, and **wars exposed the gap** in dedicated external intelligence.

ED (Enforcement Directorate)

Money-laundering / forex enforcement agency — 1 May 1956; **FEMA 1999 + PMLA 2002**; **Department of Revenue, Ministry of Finance**.

- The ED began as an **Enforcement Unit** for foreign-exchange law, under the old **FERA**, which was later replaced by **FEMA, 1999**.
- Today, the ED enforces **FEMA, 1999** and the **PMLA, 2002** — attaching and investigating the **proceeds of crime**.
- The ED works under the **Department of Revenue, Ministry of Finance — not** the MHA, and **not** the DoPT.
- The ED is a **directorate**, an executive agency, **not** a 338-style commission.

- The ED is **not** the same as the **CBI** (IPC/PCA crime), the **NIA** (scheduled terror), or the **IB/RAW** (intelligence).

NSC (National Security Council)

Extra-constitutional security-policy forum — 1998 (Vajpayee); **PM** chairs; first NSA **Brajesh Mishra**.

- The NSC's typical members are the **Home, Defence, External Affairs, and Finance Ministers**, along with the **National Security Adviser (NSA)**.
- The NSC structure has **three tiers**: the **NSC** itself (the political tier); the **Strategic Policy Group (SPG)** — of secretaries and service chiefs, chaired by the **NSA** since 2018; and the **National Security Advisory Board (NSAB)** — of outside experts.
- The NSC's secretariat is the **NSCS**, fed in turn by the **Joint Intelligence Committee**.
- The NSC is **not** the same as the **Cabinet Committee on Security (CCS (सुरक्षा कैबिनेट समिति))** — a **Cabinet** committee — nor the **NDMA**, which rests on a disaster-management statute.

Agency match card

Quick chronology and identity fact for the police/intelligence/think-tank agencies:

Agency	Founded	Beat / role	Ministry / reporting line
IB	**1887**	Internal intelligence	**MHA**
ED	**1956**	FEMA / PMLA enforcement	**Finance (Revenue)**
CBI	**1963** (+ DSPE 1946)	Crime / PCA / Interpol NCB	**DoPT**
RAW	**1968**	External intelligence	**Cabinet Secretariat**
NSC	**1998**	Security policy	**PM / NSA**
NIA	**2008** (NIA Act)	Terror investigation, no State consent	**Centre**
NITI Aayog	**2015** (Resolution)	Think-tank / SDG nodal body	**PM chairs**

The chronology to remember is: **IB (1887) → ED (1956) → CBI (1963) → RAW (1968) → NSC (1998) → NIA (2008) → NITI Aayog (2015)**.

Zonal Councils, Law Commission & Important National Commissions

1. Zonal Councils (क्षेत्रीय परिषदें)

- **Genesis & Statute:** Zonal Councils are **Statutory bodies** (NOT constitutional bodies). They were established by an Act of Parliament: **Part III of the States Reorganisation Act, 1956**.
- **Chairman:** The **Union Home Minister** is the common Chairman of all Zonal Councils.

- **Vice-Chairman:** The **Chief Ministers** of the states included in each zone act as Vice-Chairman by rotation, holding office for **one year** at a time.
- **Members:** Chief Minister and two other ministers nominated by the Governor from each state, plus the administrator of each UT in the zone.
- **Nature of Function:** Purely **deliberative and advisory** bodies to promote inter-state cooperation and regional integration.

The Five Zonal Councils & Headquarters Matrix

Zonal Council	Headquarters	Member States & Union Territories
Northern Zonal Council	**New Delhi**	Haryana, Himachal Pradesh, Punjab, Rajasthan, NCT of Delhi, UTs of J&K, Ladakh, and Chandigarh.
Central Zonal Council (मध्य क्षेत्रीय परिषद)	**Prayagraj (Allahabad)** *(High-yield UP exam fact!)*	**Uttar Pradesh, Uttarakhand, Madhya Pradesh, Chhattisgarh.**
Eastern Zonal Council	**Kolkata**	Bihar, Jharkhand, West Bengal, Odisha.
Western Zonal Council	**Mumbai**	Gujarat, Maharashtra, Goa, UTs of Dadra & Nagar Haveli and Daman & Diu.
Southern Zonal Council	**Chennai**	Andhra Pradesh, Telangana, Karnataka, Kerala, Tamil Nadu, UT of Puducherry.

> **North-Eastern Council (NEC):** Created by a separate Act — the **North-Eastern Council Act, 1971** (Headquarters: **Shillong**). It comprises 8 states: Assam, Arunachal Pradesh, Manipur, Meghalaya, Mizoram, Nagaland, Tripura, and **Sikkim** (added via 2002 amendment).

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2. Law Commission of India (विधि आयोग)

- **Status & Nature: Non-statutory, extra-constitutional executive advisory body** constituted periodically by the Government of India (Ministry of Law and Justice) for a fixed **three-year term**.
- **Pre-Independence History:**
- **First Law Commission (1834):** Established under the **Charter Act of 1833**, chaired by **Lord Macaulay** (drafted the Indian Penal Code). Subsequent pre-independence commissions were set up in 1853, 1861, and 1879.
- **Independent India:**
- **First Law Commission of Independent India (1955):** Chaired by **M.C. Setalvad** (India's first Attorney General, 1955–1958).
- **Function:** Review obsolete laws, advise on codification and law reform to implement DPSPs, and examine judicial reforms.
- **Recent Commissions:**
  - **21st Law Commission (2015–2018):** Chaired by Justice **B.S. Chauhan** (Uniform Civil Code consultation paper).

- **22nd Law Commission (2020–2024):** Chaired by Justice **Ritu Raj Awasthi** (UCC, simultaneous elections, law of sedition).

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3. National Commission to Review the Working of the Constitution (NCRWC / Venkatachaliah Commission)

- **Date of Constitution: 22 February 2000** by the NDA Government (PM Atal Bihari Vajpayee).
- **Chairman:** Former Chief Justice of India **Justice M.N. Venkatachaliah** (11-member commission).
- **Legal Status: Non-statutory, executive advisory body**. Its appointment was **NOT approved by Parliament** (created purely by executive resolution).
- **Term & Report:** Submitted its final 2-volume report on **31 March 2002**.
- **High-Yield Recommendations for Prelims:** 1. **Article 356 Safeguards:** Mandatory prior warning notice to the state; state legislative assembly should NOT be dissolved until Parliament ratifies the proclamation (codifying the *S.R. Bommai* judgment). 2. **Constructive Vote of No-Confidence:** Modelled on the German Basic Law; any no-confidence motion must concurrently name the alternative Prime Minister / Chief Minister. 3. **Fundamental Duties (Art 51A):** Recommended adding duties to vote in elections, actively pay taxes, foster family values, and educate children. 4. **Governor's Appointment:** Recommended appointment by a high-level committee comprising the Prime Minister, Union Home Minister, Lok Sabha Speaker, and the Chief Minister of the concerned state. 5. **Inter-State Council:** To be renamed as the **National Development and Inter-State Council**.

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4. National Integration Council (NIC — राष्ट्रीय एकता परिषद)

- **Establishment:** Set up in **1961** by Prime Minister **Jawaharlal Nehru** following the National Integration Conference; first meeting held in **1962**.
- **Nature:** Non-constitutional, non-statutory **executive advisory body**.
- **Chairman: Prime Minister of India**.
- **Composition:** Union Ministers, Chief Ministers of all States and UTs, leaders of political parties, UGC chairperson, SC/ST commissioners, and eminent public figures.
- **Mandate:** Address communalism, casteism, regionalism, and linguistic chauvinism.

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5. Backward Classes Commissions & Mandal Commission

- **Constitutional Basis: Article 340** empowers the President to appoint a commission to investigate the conditions of socially and educationally backward classes.
- **First Backward Classes Commission (1953):** Chaired by **Kaka Kalelkar** (submitted report in 1955; identified 2,399 backward castes).
- **Second Backward Classes Commission (1979):** Appointed by Morarji Desai's Janata Party government, chaired by **B.P. Mandal** (submitted report in December 1980):
- Identified 3,743 backward castes (~52% of population).
- Recommended **27% reservation** for OBCs in government employment and educational institutions.
- Implemented in **August 1990** by V.P. Singh (National Front) government.

- ***Indra Sawhney v. Union of India (1992)* (Mandal Case):** Supreme Court upheld 27% quota subject to exclusion of the "Creamy Layer" and a 50% cap on total reservations.
- **National Commission for Backward Classes (NCBC):**
- **1993:** Initially created as a **statutory body** under the NCBC Act, 1993.
- **2018 (102nd Constitutional Amendment Act):** Granted **constitutional status** by inserting **Article 338B** (and Article 342A). Consists of 1 Chairperson, 1 Vice-Chairperson, and 3 Members appointed by the President.

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6. Official Language Commission (राजभाषा आयोग)

- **Constitutional Mandate: Article 344** mandates the President to constitute an Official Language Commission after 5 years from commencement of the Constitution, and thereafter at the end of 10 years.
- **First Official Language Commission (1955):** Chaired by **B.G. Kher** (Kher Commission, submitted report in 1956).
- **Parliamentary Committee on Official Language:** Under **Article 344(4)**, consists of **30 members** (20 from Lok Sabha, 10 from Rajya Sabha) elected by proportional representation. Chaired by the **Union Home Minister**.

Mains link (one frame)

Three boxes: **constitutional · statutory (Act + panel) · executive (resolution)**. Contrast **Lokpal (can direct CBI)** with **CVC (supervises CBI)** with **CBI (investigates, needs State consent)** with **NIA (scheduled offences, no consent)**. NITI is the federal **think-tank**, not the FC. Close on **2019**: RTI/NHRC amendments show Parliament can **weaken a statutory watchdog** without touching the Constitution; NIA 2019 shows Parliament can **widen** a statutory agency the same way.